



U.S. Department  
of Transportation

**Research and  
Special Programs  
Administration**

**MAR 21 2000**

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 12357

EXPIRATION DATE: February 28, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: PPG Industries, Inc.  
Pittsburg, PA
2. PURPOSE AND LIMITATION:
  - a. This exemption authorizes the transportation in commerce of neo-decanoyl chloride in certain UN31H1 intermediate bulk containers (IBCs). This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.243(d) in that UN31H1 IBCs are authorized.
5. BASIS: This exemption is based on the application of PPG Industries, Inc. dated September 17, 1999 submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Proper Shipping Name/<br>Hazardous Materials Description            | Hazard<br>Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group |
|---------------------------------------------------------------------|------------------------------|-------------------------------|------------------|
| Toxic liquid, corrosive, organic,<br>n.o.s. (neo-decanoyl chloride) | 6.1                          | UN2927                        | II               |

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The packaging prescribed is a DOT Specification UN31H1 IBC with a capacity of 220, 275 or 330 gallons. The IBC is designated as a Snyder Ultratainer with a nominal wall thickness of 13 mm (0.625 inch) and no bottom outlet. The IBC must conform to the specification drawing submitted with PPG's September 17, 1999 application on file with Office of Hazardous Materials Exemptions and Approvals.

b. OPERATIONAL CONTROLS - Shipments shall be made via private or contract carrier under exclusive use of PPG Industries, Inc.

8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at each facility where the package is offered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire  
Acting Associate Administrator for  
Hazardous Materials Safety

**MAR 21 2000**

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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Copies of exemptions may be obtained from the AAHMS, U.S.  
Department of Transportation, 400 7th Street, S.W., Washington,  
DC 20590-0001, Attention: Records Center, 202-366-5046.

Dist: FMCSA  
PO: DBURGER